

took the likeness of the *use*, conforming itself to the nature of special trusts and trusts of chattels, which had never been disturbed by any legislative enactment.

Trusts at first modeled after the pattern of uses. — To show how, the principles of uses prevailed after the statute of Hen. 8. it was held in the reign of Elizabeth (*a*), that the equitable term of a *feme covert* did not vest in the husband by survivorship, for a trust, it was said, was a thing in privity, and in the nature of an action, and there was no remedy for it but by writ of *subpœna*. And a few years after in the same reign it was resolved by all the Judges, that a trust was a matter of privity, and in the nature of a *chose in action*, and therefore was not *assignable* (*b*). And in the sixth year of King Charles the First it was decided by the Judges, that as a feme was dowable by act or rule of law, and a court of equity had no jurisdiction where there was not fraud or covin, the widow of a trustee was not bound by the trust, but was entitled beneficially to her dower out of the trust estate (*c*).

Improvements introduced by Lord Nottingham. — But during the reign of Charles the First and Charles the Second, and particularly during the Chancellorship of Lord Nottingham, who, from the sound and comprehensive principles upon which he administered trusts, has been styled the father of equity (*d*), the Courts gradually threw off the fetters of uses and, disregarding the operation of mere technical rules, proceeded to establish trusts upon the broad foundation of conformity to the course of common law. "In my opinion," said Lord Mansfield, "trusts were not on a true foundation till Lord Nottingham held the great seal; but by steadily pursuing from plain principles trusts in all their consequences, and by some assistance from the legislature, a [*9] noble, rational, and *uniform system of law has since been raised; so that trusts are now made to answer the exigencies of families and all purposes, without produc-

(*a*) Witham's Case, 4 Inst. 87;
S. C. Popham, 106, *sub nomine* John-
son's Case.

(*b*) Sir Moyle Finch's Case, 4 Inst.
86.

(*c*) Nash v. Preston, Cro. Car. 190.

(*d*) Philips v. Brydges, 3 Ves. 127;
Kemp v. Kemp, 5 Ves. 858.